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UTDSP5008

Behavior Assessment and Intervention Team

Policy Statement



Section 01: Policy Statements

01.01 - The University of Texas at Dallas is committed to providing a learning environment that is conducive for students to develop to their fullest potential. In furtherance of this commitment and to encourage members of the University community to work collaboratively to promote the health, safety and welfare of our students, UT Dallas has established the Behavior Assessment and Intervention Team.

Section 02: Purpose

02.01 - This policy establishes the Behavior Assessment and Intervention Team (BAIT) and sets forth BAIT responsibilities and operations.

02.02 - This policy also outlines procedures for team consultation with UT Dallas faculty and staff who are concerned about the behavior of a student and its potential impact on the health, safety and welfare of members of the University community. At the beginning of each long semester, the Vice President for Student Affairs will send a notice to faculty and staff through appropriate communication channels, stating that the team is available for consultation when they are concerned about potentially harmful, threatening, or disruptive behavior of a student or students.

Section 03: Team Purpose and Responsibilities

03.01 - The purpose of the Behavior Assessment and Intervention Team is to review behavioral incidents and assist in the development of a strategy to address situations involving students whose behavior may be disruptive or harmful to the UT Dallas community, including situations where the disruptive or harmful behavior may be a result of a mental, emotional or psychological health issue.

Specifically, the charge for this team is to:

- A. Assess situations involving a student whose behavior may be disruptive or harmful to the UT Dallas community.
- B. Consult with administration, faculty, staff and other students affected by the inappropriate behaviors of a disruptive student.
- C. Coordinate the University response to address the situation.
- D. Monitor the cases that have come to the attention of the BAIT.
- E. Make recommendations to responsible University officials on appropriate action consistent with University policy and procedure statements and with state and federal law.

Section 04: Team Composition

04.01 - The team reports to the Vice President for Student Affairs.

04.02 - The team is chaired by the Vice President for Student Affairs or designee and core members include:

- A. Dean of Students
- B. Dean of Undergraduate Education
- C. Director of the Student Counseling Center
- D. UT Dallas Chief of Police or designee
- E. Associate Dean(s) of Students
- F. Director of Residential Life

04.03 - The team will consult with the UT System Office of General Counsel (OGC) or University Attorney as needed. A representative from OGC or University Attorney will serve on the team in situations where there are obvious legal issues and concerns.

04.04 - Referrals to BAIT

- A.1 - Anyone in the campus community observing an incident of behavior threatening to others, property damage, disruption to campus activities, or other violation(s) of the law, should contact the UT Dallas Police Department (UTDPD) immediately. The UTD Police will assess the situation to determine if police action is warranted.
- A.2 - Anyone in the campus community observing an incident of a violation of an institutional rule should contact the Dean of Students immediately.
- B - Anyone in the campus community who observes concerning or disruptive behavior but is unsure of where to refer the matter or how to address it, should refer the matter to the BAIT chair or any BAIT member directly.

Section 05: Operations and Procedure Guidelines for Case Management

05.01 - Upon receiving notice of a case that a team member deems time-sensitive, the team member may call a special team meeting of the BAIT.

05.02 - All meetings of the BAIT will be chaired by the Vice President for Student Affairs or designee.

05.03 - The BAIT, team at its discretion, may meet with affected members of the University community to discuss the situation, including: administrators, faculty, staff and other students who may have been witness to or impacted by specific behaviors of the student; the student who is the subject of the referral; the parent or guardian or other family member, if appropriate; or mental health or other medical professionals as may be permitted by law.

05.04 - Members of the team will recommend to the affected members of the University community, to the Vice President for Student Affairs, and to UT Dallas administration, a coordinated strategy for addressing the situation taking into account the Student Standards of Conduct and/or appropriate document(s).. Specific issues for consideration include identifying the specific behavior of concern; identifying the context of the behavior; assessing potential violence and or danger to the university community including the nature, duration and severity of any risk; reviewing evidence of health issues, including mental health issues, as the potential cause of the behavior; assessing whether reasonable accommodations will mitigate risk; and identifying appropriate resources to assist in addressing the situation.

05.05 - BAIT recommendations will be made through the chair of the BAIT or his/her designee through appropriate administrative channels.

05.06 - When a violation of the Student Code of Conduct is identified, the Dean of Students will pursue the matter in accordance with Policy UTDSP5003, Student Discipline and Conduct.

05.07 - Following a case management evaluation and subsequent recommendation, the team will meet to debrief and evaluate the outcome of the situation.

Section 06: Case Information and Confidentially Procedures

06.01 - BAIT records are confidential and will not be released except in accordance with applicable legal and professional standards of confidentiality, including the Texas Public Information Act and the Family Educational Rights and Privacy Act of 1974 (FERPA). FERPA does allow the release of student education records in accordance with health and safety emergencies when release is necessary to protect the health and safety of the student or other individuals.

06.02 - If the student who is the subject of the BAIT review is already a client of the Student Counseling Center or the Women's Center and/or is a patient of the Student Health Center, information about that student's contacts may not be obtained by the team from those agencies without written authorization of the student in question, in accordance with federal and state law. Federal and state laws that govern the privacy and confidentiality of students' health and mental health information and records include:

- A. Health Insurance Portability and Accountability Act (Federal)
- B. Psychologists Licensing Act (Texas)
- C. Texas Health and Safety Code, Title 7, Ch. 611 Mental Health Records
- D. Texas Health and Safety Code, Title 2, Ch. 181 Medical Records Privacy

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